

THE CONSTITUTION (TWENTY-SIXTH AMENDMENT) ACT, 1971

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Constitution and Amendments

THE CONSTITUTION (TWENTY-SIXTH AMENDMENT) ACT, 1971

India

THE CONSTITUTION (TWENTY-SIXTH AMENDMENT) ACT, 1971

Act 026 of 1971

Published in Gazette of India on 31 July 1971

Commenced on 28 December 1971

[This is the version of this document from 31 July 1971.]

[Note: The original publication document is not available and this content could not be verified.]

Statement of Objects and Reasons appended to the Constitution (Twenty-sixth Amendment) Bill, 1971 which was enacted as THE CONSTITUTION (Twenty-sixth Amendment) Act, 1971

STATEMENT OF OBJECTS AND REASONS

The concept of rulership, with privy purses and special privileges unrelated to any current functions and social purposes, is incompatible with an egalitarian social order. Government have, therefore, decided to terminate the privy purses and privileges of the Rulers of former Indian States. It is necessary for this purpose, apart from amending the relevant provisions of the Constitution, to insert a new article therein so as to terminate expressly the recognition already granted to such Rulers and to abolish privy purses and extinguish all rights, liabilities and obligations in respect of privy purses. Hence this Bill.

An Act further to amend the Constitution of India.

BE it enacted by Parliament in the Twenty-second Year of the Republic of India as follows:---

1.

Short title.-

This Act may be called the Constitution (Twenty-sixth Amendment) Act, 1971.

2.

Omission of articles 291 and 362.-

Articles 291 and 362 of the Constitution shall be omitted.

3.

Insertion of new article 363A.-

After article 363 of the Constitution, the following article shall be inserted, namely:---

"363A. Recognition granted to Rulers of Indian States to cease and privy purses to be abolished.- Notwithstanding anything in this Constitution or in any law for the time being in force-

(a)

The Prince, Chief or other person who, at any time before the commencement of THE CONSTITUTION (Twenty-sixth Amendment) Act, 1971, was recognised by the President as the Ruler of an Indian State or any person who, at any time before such commencement, was recognised by the President as the successor of such Ruler shall, on and from such commencement, cease to be recognised as such Ruler or the successor of such Ruler;

(b)

on and from the commencement of the Constitution (Twenty-sixth Amendment) Act, 1971, privy purse is abolished and all rights, liabilities and obligations in respect of privy purse are extinguished and accordingly the Ruler or, as the case may be, the successor of such Ruler, referred to in clause (a) or any other person shall not be paid any sum as privy purse."

4.

Amendment of article 366.-

In article 366 of the Constitution, for clause (22), the following clause shall be substituted, namely:-

(22)

"Ruler" means the Prince, Chief or other person who, at any time before the commencement of THE CONSTITUTION (Twenty-sixth Amendment) Act, 1971, was recognised by the President as the Ruler of an Indian State or any person who, at any time before such commencement, was recognised by the President as the successor of such Ruler;".

[The Constitution (Twenty-Sixth Amendment) Act, 1971, its aim was to abolish the practice of privy purses and thereby make the political system more democratic. In return for surrendering their powers, Articles 291 and 362 guaranteed royal families a tax-free privy purse which was approximately one-fourth of what they had earlier earned. Thus, Article 291 and Article 362 which restricted equality and social justice of the democratic system were removed from the Constitution. Additionally, article 366 was amended and Article 33A inserted. Therefore, the decision was made to eliminate privy purses and privileges that were enjoyed by former rulers of India. All the rights, liabilities, as well as obligations regarding the purses of the privy, were abolished.

Important Verdict-Shri Raghunathrao Ganpatrao vs Union Of India

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